

WRITTEN SUBMISSIONS · 9 JUN 1998

Writ of summons

TYPE	COURT	DATE
Pleadings / procedural document	Regional Court (TGI) of Grasse (enforcement judge)	9 Jun 1998
PARTIES		
Bernard Collorafi v. McDonald's France		

SUMMARY SHEET

Writ of summons before the enforcement judge — Grasse Regional Court (TGI) · 9 June 1998

Overview: writ of summons served at the request of the companies SEBOL, B et O and Les Pins and of Bernard Collorafi, against McDonald's France, before the enforcement judge of the Regional Court (TGI) of Grasse, for the hearing of Tuesday 9 June 1998. Counsel: Maître Jean-Paul Clément (counsel, Paris Bar) and Maître Martine Bosc (counsel, Grasse Bar).

Key points

The document recalls the judgment of the Paris Commercial Court of 18 May 1998, which dismissed the claims of Mr Collorafi and the companies, recorded the termination of the lease-management agreements (location-gérance), ordered the eviction from the Antibes and Juan-les-Pins restaurants subject to a periodic penalty, and imposed joint and several orders to pay fees. The applicants ask the judge to find that this judgment is not provisionally enforceable, and to declare null and void the orders to pay served on 27 May 1998, as they fail to state the legal representative of McDonald's and to contain the particulars required by article 194 of the decree of 31 July 1992. In the alternative, they request a three-month period of grace and 10,000 F under article 700 of the NCPC.

Significance

This document marks the franchisee's challenge to the enforcement measures initiated by McDonald's after the commercial court judgment, pending the appeal.

Sheet generated automatically from the transcription of the document.

Source: bernardcollorafi.org/en/documents/writ-of-summons-enforcement-judge-grasse-regional-court-collorafi-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.